

TEAM ADDENDUM TO THE INDEPENDENT CONTRACTOR AGREEMENT

This Team Addendum ("Addendum") is entered into this 1st day of October, 2024, by and between Foraker Realty Co. ("Brokerage") and _____ ("Agent"), who is affiliated with the team led by _____ ("Team Lead").

1. Commission Splits and Compensation

- a. The Agent acknowledges that Foraker Realty Co. will only negotiate commission splits and compensation terms directly with the Team Lead, not with the Agent individually. The Agent understands that all commission splits related to their transactions will be determined through negotiations between the Brokerage and the Team Lead.
- b. The Agent agrees that any commission earned on transactions, whether initiated by the Agent or provided by the Team, will be paid by the Brokerage to the Team Lead. The Team Lead will then be responsible for disbursing the Agent's share of the commission according to the terms agreed upon between the Team Lead and the Agent.
- c. Any additional compensation agreements or splits made between the Agent and the Team Lead will not supersede or alter the terms of this Addendum. In the event of any conflict, this Addendum shall take priority and govern the distribution of commissions.

2. Hold Harmless Agreement

- a. The Agent agrees to hold Foraker Realty Co. and the team, including the Team Lead, harmless from any and all claims, demands, actions, or causes of action arising from or relating to policies, procedures, teachings, leads, training programs, or other activities or decisions made within the team structure.
- b. The Agent further agrees that any disputes related to team policies or practices, including commission splits or compensation, will be resolved internally between the Agent and the Team Lead. The Brokerage will not be held responsible or liable for any team-related matters.

3. Team-Specific Policies and Procedures

- a. The Agent acknowledges that the Team Lead may establish additional policies, systems, or training requirements specific to the team, which may differ from Foraker Realty Co.'s general policies. The Agent agrees to comply with these team-specific rules while maintaining the independent contractor status outlined in the ICA.
- b. The Agent is responsible for communicating with the Team Lead regarding any concerns or discrepancies related to team policies, commissions, or expectations.

4. Leads and Prospect Management

- a. Leads and prospects provided by the team are subject to the team's internal distribution policies. The Agent acknowledges that all decisions related to lead assignments are at the discretion of the Team Lead and will be honored by the Agent.
- b. Any leads generated by the Agent independently shall be governed by the commission split agreement with the Team Lead and not by Foraker Realty Co.

5. Confidentiality and Team Practices

- a. The Agent agrees that any proprietary methods, tools, or business practices used by the team shall remain confidential and shall not be disclosed outside of the team without the Team Lead's written consent.
- b. This confidentiality clause supplements the confidentiality provisions found in the original ICA and applies specifically to team-specific methods and operations.

6. Termination

- a. In the event that the Agent terminates their affiliation with the team or the team is dissolved, this Addendum will terminate immediately, and the ICA will remain in full effect.
- b. The Agent agrees to honor any remaining commission agreements for transactions in progress at the time of termination, which will be handled as per the terms agreed with the Team Lead.

7. Priority of This Addendum

- a. The Agent acknowledges that this Addendum will take priority over any other agreements made between the Agent and the Team Lead regarding commissions, compensation, policies, or team practices. In the event of any conflict between this Addendum and any other agreement, the terms of this Addendum will govern and prevail.
- b. Any modifications to commission splits, compensation, or team-specific agreements must be communicated to the Brokerage through the Team Lead, and the Brokerage reserves the right to approve or deny any changes that conflict with this Addendum.

8. Miscellaneous

- a. This Addendum represents the entire understanding between the Agent and Foraker Realty Co. regarding team-related activities.
- b. No modifications or amendments to this Addendum shall be valid unless in writing and signed by all parties.
- c. This Addendum shall be governed by and construed in accordance with the laws of the Commonwealth of Pennsylvania.

IN WITNESS WHEREOF, the parties hereto have executed this Addendum as of the date first written above.

Agent Signature: _____

Date: _____

Agent Name (Printed): _____

Foraker Realty Co. Signature: _____

Date: _____

(Printed): _____

Team Lead Signature: _____

Date: _____

Team Lead Name (Printed): _____